

PUBLIC INTERNATIONAL LAW

UNIT III — Individual, Nationality, Extradition, Asylum, Diplomatic Immunity & Treaties

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	Position of Individual in International Law	6	★★★★★☆☆
PART A — Q2	Nationality	6	★★★★★★★★
PART A — Q3	Extradition	6	★★★★★★★★
PART A — Q4	Asylum	6	★★★★★★★★
PART A — Q5	Privileges & Immunities of Diplomatic Envoys	6	★★★★★★★★
PART A — Q6	Formation of Treaties	6	★★★★★★★★
PART A — Q7	Reservations to Treaties	6	★★★★★☆☆
PART A — Q8	Termination of Treaties	6	★★★★★☆☆
PART B — Q1	Extradition — Law, Principles & Practice (Essay)	15	★★★★★★★★
PART B — Q2	Diplomatic Privileges & Immunities (Essay)	15	★★★★★★★★
PART B — Q3	Law of Treaties — Formation, Consent, Reservation, Termination	15	★★★★★★★★
PART C — IRAC 1	Diplomat arrested for cyber espionage (2024 Q16)	10	★★★★★★★★
PART C — IRAC 2	Extradition without treaty (2024 Q13 type)	10	★★★★★★★★
QUICK REVISION	Key Numbers, Cases, Mnemonics, Traps	—	—

UNIT III — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- Position of Individual in International Law
- Nationality — acquisition, loss, statelessness, double nationality
- Extradition — principles, double criminality, political offence exception
- Asylum — territorial, diplomatic, extradition vs asylum
- Privileges and Immunities of Diplomatic Envoys (VCDR 1961)
- Law of Treaties — Formation, Modes of Consent, Reservation, Termination (VCLT 1969)

✗ TOPICS NOT IN THIS UNIT

- Sources, Nature of Int'l Law → Unit I
- State Recognition, Succession, Territory → Unit II
- Law of Sea, Airspace, Outer Space → Unit IV
- UN, ICJ, ICC, WHO, UNESCO → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

- FROM 2024 PAPER Q16 (Part C): Diplomat arrested for cyber espionage — DIRECTLY tests diplomatic immunity (VCDR)
- FROM 2024 PAPER Q13 (Part B): Extradition without treaty — tests double criminality + political offence
- MOST LIKELY Part B: Diplomatic Privileges & Immunities — perennial favourite
- VERY LIKELY Part B: Law of Treaties — formation + reservation + termination
- LIKELY Part A: Asylum (types + non-refoulement); Nationality (statelessness)

CRITICAL NUMBERS TO MEMORISE

VCDR 1961 — Vienna Convention on Diplomatic Relations — THE source for diplomatic immunity
VCLT 1969 — Vienna Convention on Law of Treaties — THE source for treaty law
VCDR Art. 22 — Inviolability of diplomatic premises
VCDR Art. 29 — Personal inviolability of diplomatic agent
VCDR Art. 31 — Immunity from criminal jurisdiction (absolute)
VCDR Art. 32 — Waiver of immunity — by sending State only
VCDR Art. 9 — Persona non grata
VCLT Art. 2(1)(a) — Definition of treaty
VCLT Art. 26 — Pacta Sunt Servanda
VCLT Art. 27 — Cannot invoke internal law to escape treaty obligation
VCLT Art. 46-53 — Invalidity of treaties
VCLT Art. 60-62 — Termination / Suspension
Refugee Convention 1951 + Protocol 1967 — Asylum / Non-refoulement
Hague Convention 1930 — Nationality



PART A — SHORT NOTES (6 Marks Each)

Definition + 4-5 key points + 1 case + 1 example + exam tip. ~1.5 pages. Time: 8-10 min.

Q1 — Position of Individual in International Law ★★★★★☆

Definition

The 'position of individual' refers to the extent to which a natural person (human being) is recognised as a subject of international law — i.e., a bearer of rights and duties directly under international law, independently of the State.

Key Points

- Traditional view: Only States are subjects of int'l law — individuals are mere objects, protected or regulated indirectly through their State.
- Modern view: Individuals have LIMITED but growing subjectivity — rights and duties under int'l law in specific contexts.
- Rights of individuals: Human rights treaties (UDHR 1948, ICCPR, ICESCR); Refugee Convention 1951; Geneva Conventions.
- Duties of individuals: Int'l criminal law — genocide, war crimes, crimes against humanity — individuals personally liable (not just States).
- Locus standi: Individual may petition human rights bodies (UN Human Rights Committee, European Court of Human Rights) — direct access.
- Investment arbitration: Individuals/corporations can sue States directly in ICSID (International Centre for Settlement of Investment Disputes).
- Limitation: Individuals CANNOT bring cases directly before ICJ — only States can.

 *Example: After WW2, Nazi leaders were tried personally at Nuremberg Tribunal (1945-46) — first recognition that individuals bear criminal responsibility under int'l law regardless of State orders.*

 **Case: *Nottebohm Case (ICJ, 1955)*** — ICJ examined individual's nationality in int'l law — held Liechtenstein could not exercise diplomatic protection for Nottebohm against Guatemala because genuine link of nationality was absent.

 **Case: *Nuremberg Trials (1945-46)*** — Individuals convicted of war crimes and crimes against humanity — 'just following orders' defence rejected — individuals ARE subjects of int'l criminal law.

 **EXAM TIP:** Key contrast: Traditional = objects; Modern = limited subjects. Remember: ICJ = States only. ICC/ECHR = individuals directly. Investment arbitration = corporations vs States.

Q2 — Nationality ★★★★★

Definition

Nationality is the legal bond between an individual and a State, conferring rights (protection abroad, consular assistance) and duties (allegiance, military service). It is the primary basis for a State's right to exercise diplomatic protection on behalf of its citizens.

Modes of Acquiring Nationality

- 1. Jus Soli (Law of Soil): Nationality by birth on the territory of the State — USA, UK, Canada use this.
- 2. Jus Sanguinis (Law of Blood): Nationality by descent — from parents' nationality — India, Germany use this primarily.
- 3. Naturalisation: Grant of nationality by the State on application after fulfilling conditions (residence, language, renouncing other nationality).
- 4. Marriage: Acquisition through marriage to a national (varies by State law).
- 5. Annexation/Cession: Territory transferred — inhabitants may acquire new State's nationality.

Special Problems

- Statelessness: Person with NO nationality — no State obliged to protect them. Hague Convention 1930 aims to reduce statelessness. 1954 Convention on Status of Stateless Persons.
- Double/Multiple Nationality: Person holds nationality of two or more States — both States may claim them. Creates conflict. Nottebohm — 'genuine link' test resolves conflicts.
- Diplomatic Protection: State's right to espouse its national's claim against another State — only if national has exhausted local remedies.

 **Nottebohm/Genuine Link Test:** For int'l purposes, nationality must reflect a genuine connection — habitual residence, family ties, participation in public life, centre of interests.

 *Example: India's citizenship: Art. 5-11 Constitution of India; Citizenship Act 1955. India does NOT generally allow dual citizenship — OCI (Overseas Citizen of India) is NOT full citizenship.*

 **Case: Nottebohm Case (ICJ, 1955)** — Nottebohm obtained Liechtenstein nationality on eve of WW2 to avoid enemy-alien status. ICJ held: nationality must reflect genuine link — Liechtenstein's diplomatic protection claim against Guatemala rejected.

 **Case: Hague Convention on Nationality, 1930** — Codified rules on nationality conflicts: each State determines its own nationals; but int'l law limits this in cases of double nationality and statelessness.

 **EXAM TIP:** Mnemonic: Acquisition = 'JJNAM' = Jus Soli, Jus Sanguinis, Naturalisation, Annexation, Marriage. Genuine link = Nottebohm = MUST cite. India = Jus Sanguinis primarily.

Q3 — Extradition ★★★★★

Definition

Extradition is the formal process by which one State (the requested State) surrenders a person accused or convicted of an offence to another State (the requesting State) which has jurisdiction to try or punish the person.

Key Principles of Extradition

- 1. Treaty Basis: No State is under a general obligation to extradite — extradition requires a bilateral or multilateral treaty. (Exception: some States extradite as comity even without treaty.)
- 2. Double Criminality: The offence must be a crime under the laws of BOTH the requesting AND requested State. If not a crime in both — no extradition.
- 3. Principle of Specialty: The requesting State can only try the person for the offence specified in the extradition request — cannot prosecute for other offences.
- 4. Political Offence Exception: Extradition is REFUSED for political offences. Pure political offences (sedition, rebellion against foreign govt) are excepted. BUT: Terrorism, genocide, war crimes are NOT political offences — must extradite.
- 5. Non-extradition of Own Nationals: Many States (including India) refuse to extradite their own nationals — try them domestically instead.
- 6. Extradite or Prosecute (Aut Dedere Aut Judicare): Modern principle — if you don't extradite, you MUST prosecute domestically.

 No general obligation to extradite without treaty — but aut dedere aut judicare fills the gap: extradite OR prosecute.

 *Example: India refused extradition of Warren Anderson (Bhopal gas tragedy CEO) from USA — USA declined as there was no extradition treaty at the time and political considerations prevailed.*

 *Example: Vijay Mallya extradited from UK to India (2023) — bilateral extradition treaty between India and UK used — double criminality satisfied for bank fraud.*

 **Case: *R v. Bow Street Magistrate, ex parte Pinochet (UK, 1999)*** — House of Lords held former Chilean dictator Pinochet could be extradited for torture — crimes against humanity are NOT political offences; no immunity for former Heads of State for int'l crimes.

 **Case: *US v. Alvarez-Machain (USA, 1992)*** — US Supreme Court upheld jurisdiction even though defendant was forcibly abducted from Mexico — controversial; criticised as violating int'l law — shows limits of extradition system.

 **EXAM TIP: Mnemonic: 'DTSP-NE' = Double criminality, Treaty basis, Specialty, Political offence exception, Non-extradition of nationals, Extradite-or-prosecute. Political offence exception = KEY distinction in exams.**

Q4 — Asylum ★★★★★

Definition

Asylum is the protection granted by a State to a person who has left their own State and is fleeing persecution. International law recognises the right of a State to grant asylum — but there is no individual right to receive asylum under general international law (only under specific treaties).

Types of Asylum

- 1. Territorial Asylum: Granted within the territory of the asylum-giving State. The State has sovereign discretion to grant it. Most common form.
- 2. Diplomatic Asylum (Extra-Territorial Asylum): Granted in embassies, legations, consulates, or warships of the asylum-giving State in a foreign country. NOT recognised under general int'l law — only in Latin America (Havana Convention 1928; Caracas Convention 1954).
- 3. Neutral Zone / Ship Asylum: On neutral territory or ships — rare.

Key Principles

- Non-refoulement (Art. 33, Refugee Convention 1951): A refugee must NOT be returned to a territory where they face serious threat to life or freedom. This is the CORNERSTONE principle — arguably jus cogens.
- Refugee definition (Art. 1A, Refugee Convention 1951): Person outside their country having well-founded fear of persecution on grounds of race, religion, nationality, political opinion, or membership of a particular social group.
- Right to grant asylum: State's sovereign right — no obligation to grant to any specific individual.
- Asylum vs Extradition: When extradition is requested for a person who has been granted asylum — asylum generally prevails if the offence is political. But for int'l crimes (genocide, terrorism) — extradition/prosecution must occur.

 Non-refoulement (Art. 33 Refugee Convention 1951) = THE most important principle in asylum law. Cannot return refugee to place of persecution — widely considered customary int'l law.

 *Example: Julian Assange sought diplomatic asylum in Ecuador's London embassy (2012-2019) — diplomatic asylum not recognised by UK under general int'l law. He remained there until Ecuador withdrew asylum and he was arrested.*

 *Example: India does not have a domestic asylum law but follows UNHCR procedures — non-refoulement applied in practice.*

 **Case: Asylum Case (Colombia v. Peru, ICJ, 1950)** — Colombia granted diplomatic asylum to Peruvian rebel Haya de la Torre in its Lima embassy. ICJ held: diplomatic asylum NOT a right under general int'l law; Colombia could not qualify the offence as political unilaterally.

 **Case: R v. Secretary of State, ex parte Adan (UK, 2001)** — UK courts held non-refoulement is an absolute obligation — cannot return asylum seekers even to 'safe third countries' if persecution risk remains.

 **EXAM TIP: Asylum Case (ICJ 1950) = diplomatic asylum NOT recognised in general int'l law — Latin America only. Non-refoulement = Art. 33 Refugee Convention 1951 = MUST cite. Territorial**

|asylum = valid everywhere.

Q5 — Privileges & Immunities of Diplomatic Envoys ★★★★★

Definition

Diplomatic privileges and immunities are the special rights and freedoms granted to diplomatic agents of one State operating in another State (the receiving State), to enable them to perform their functions effectively and without interference. The primary source is the Vienna Convention on Diplomatic Relations (VCDR) 1961.

Basis / Theories

- 1. Exterritoriality Theory (old): Embassy = extension of sending State's territory. REJECTED — too absolute.
- 2. Representational Theory: Envoy represents a sovereign State — personal dignity of the sovereign extends to them.
- 3. Functional Necessity Theory (MODERN/CORRECT): Immunities are necessary so diplomatic agents can perform their functions without fear of interference — adopted by VCDR preamble.

Key Immunities Under VCDR 1961

- Art. 22 — Inviolability of Premises: The receiving State must protect diplomatic premises; its agents may NOT enter without consent of head of mission. Archives and documents are also inviolable.
- Art. 27 — Freedom of Communication: Diplomatic bag inviolable; diplomatic couriers protected.
- Art. 29 — Personal Inviolability: Diplomatic agent is inviolable — cannot be arrested or detained. Receiving State must treat with due respect.
- Art. 31 — Immunity from Criminal Jurisdiction: ABSOLUTE — diplomatic agent immune from ALL criminal prosecution in receiving State.
- Art. 31 — Civil & Administrative Immunity: Generally immune EXCEPT for: (a) real property actions; (b) succession proceedings; (c) professional/commercial activities outside official functions.
- Art. 34 — Tax Exemption: Exempt from all dues and taxes.
- Art. 36 — Customs Exemption: Personal baggage exempt from inspection.

Limits & Waiver

- Art. 32 — Waiver: ONLY the sending State can waive immunity — diplomat CANNOT waive their own immunity. Waiver must be express.
- Art. 9 — Persona Non Grata (PNG): Receiving State may declare any diplomatic agent persona non grata at any time — no reasons required — sending State must recall.
- Art. 41 — Duty to Respect Laws: Diplomatic agents must respect the laws of the receiving State — but cannot be compelled to comply through criminal sanctions.

 VCDR Art. 31: Criminal immunity = ABSOLUTE. Receiving State CANNOT prosecute a diplomat for ANY crime. Remedy: declare PNG (Art. 9) OR request waiver from sending State (Art. 32).

 Example: In 2013, Indian diplomat Devyani Khobragade was arrested in New York for alleged visa

fraud. India invoked VCDR — USA argued she was a consular (not diplomatic) officer with limited immunity under VCCR 1963. Diplomatic row ensued — she was recalled and charges eventually dropped.

⚖️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — ICJ held Iran violated VCDR by permitting seizure of US Embassy and holding diplomats hostage — inviolability of premises (Art. 22) and personal inviolability (Art. 29) grossly violated.

⚖️ **Case: *Congo v. Belgium (ICJ, 2002)*** — Arrest Warrant Case — Belgium issued arrest warrant for Congo's Foreign Minister for war crimes. ICJ held: incumbent Foreign Ministers enjoy full immunity from criminal jurisdiction abroad — even for international crimes.

💡 **EXAM TIP:** Mnemonic for key articles: '22-27-29-31-32-9' = Premises, Communication, Personal inviolability, Criminal immunity, Waiver, PNG. Criminal immunity = ABSOLUTE = Art. 31. Waiver = Sending State only = Art. 32.

Q6 — Formation of Treaties ★★★★★

📖 Definition (VCLT Art. 2(1)(a))

A Treaty is 'an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments, and whatever its particular designation' — VCLT 1969, Art. 2(1)(a).

📋 Stages of Treaty Formation

- 1. **NEGOTIATION**: States negotiate text through their representatives (plenipotentiaries — Art. 7 VCLT). Full powers (credentials) required, unless Head of State, Head of Government, Foreign Minister — they have inherent authority.
- 2. **ADOPTION**: Agreement on final text — usually by consensus or 2/3 majority at international conferences (Art. 9 VCLT).
- 3. **AUTHENTICATION**: Text certified as authentic and definitive — by signing, initialling, or incorporating in final act (Art. 10 VCLT).
- 4. **EXPRESSION OF CONSENT TO BE BOUND**: States express consent through: (a) Signature; (b) Exchange of instruments; (c) Ratification; (d) Acceptance/Approval; (e) Accession; (f) Any agreed method (Art. 11 VCLT).
- 5. **ENTRY INTO FORCE**: Treaty becomes binding when conditions specified in treaty are met — e.g., ratification by X number of States (Art. 24 VCLT).
- 6. **REGISTRATION**: Art. 102 UN Charter — treaties must be registered with UN Secretariat; unregistered treaties cannot be invoked before UN organs.

🔑 Modes of Consent (Art. 11 VCLT)

- **Signature**: Consent if treaty so provides or parties so agree — less formal treaties.
- **Ratification**: Formal confirmation by State's constitutional authority (parliament) — used for important treaties. India: President ratifies after Parliamentary resolution.
- **Accession**: Joining a treaty after it has already been concluded and entered into force — open to non-original parties.
- **Acceptance/Approval**: Functionally equivalent to ratification.

🟡 **Pacta Sunt Servanda (Art. 26 VCLT)**: Every treaty in force is binding on the parties — must be performed in good faith. THE fundamental rule of treaty law.

📌 *Example: India ratified the Paris Agreement on Climate Change (2016) — Presidential ratification + Parliament approval. India acceded to UNCLOS 1982 in 1995 — could not negotiate original text.*

🏛️ **Case: Mavrommatis Palestine Concessions (PCIJ, 1924)** — PCIJ held: a treaty must be interpreted in light of its object and purpose — foundational treaty interpretation case.

💡 **EXAM TIP**: Stages: 'NAAEFR' = Negotiate, Adopt, Authenticate, Express consent, Force (entry into), Register. Ratification ≠ Signature — President/Parliament required for ratification in India.

Q7 — Reservations to Treaties ★★★★★

📖 Definition (VCLT Art. 2(1)(d))

A Reservation is 'a unilateral statement, however phrased or named, made by a State, when signing, ratifying, accepting, approving or acceding to a treaty, whereby it purports to exclude or to modify the legal effect of certain provisions of the treaty in their application to that State.'

🔑 Key Rules on Reservations (VCLT Arts. 19-23)

- When PERMITTED: Any time unless (a) treaty prohibits all reservations; (b) treaty permits only specific reservations not including the one made; (c) reservation is incompatible with object and purpose of treaty.
- Effect between reserving State and others: (a) If accepted by another party — treaty applies as modified by reservation between them; (b) If objected to but treaty not excluded — reservation simply not applied; (c) If objected AND treaty excluded — no treaty relation between those two States.
- Withdrawal: Reservations may be withdrawn at any time (Art. 22 VCLT).
- Jus Cogens exception: Reservation cannot be made to jus cogens norms — void.

🟡 **Compatibility test:** Reservation must not be INCOMPATIBLE WITH THE OBJECT AND PURPOSE of the treaty (Art. 19(c) VCLT). This is the key test — from Reservations to Genocide Convention Advisory Opinion 1951.

📌 *Example: India's reservations to CEDAW (Convention on Elimination of All Forms of Discrimination Against Women) — India made reservations to certain articles citing domestic laws. Other States accepted India's ratification with reservations.*

🏛️ **Case: Reservations to Genocide Convention (ICJ Advisory Opinion, 1951)** — ICJ established the 'object and purpose' test for validity of reservations. A State may maintain a reservation if it is compatible with the object and purpose of the treaty, even if other parties object.

💡 **EXAM TIP:** Key: Reservation = modify/exclude a provision. Permitted unless treaty prohibits OR incompatible with object and purpose. Object-and-purpose test = Genocide Convention Advisory Opinion 1951.

Q8 — Termination of Treaties ★★★★★

📖 Introduction

Treaties, once binding, may be terminated or suspended under specific conditions recognised by the VCLT 1969. Unilateral withdrawal without legal basis is itself a breach of international law.

🔑 Grounds for Termination (VCLT Arts. 54-64)

- 1. By Treaty Provision (Art. 54): Treaty itself provides for termination — on a date, event, or by notice.
- 2. Consent of Parties (Art. 54(b)): All parties may consent to terminate at any time.
- 3. Denunciation/Withdrawal (Art. 56): If treaty is silent — implied right to denounce if: (a) parties intended to allow it; or (b) nature of treaty implies right. Notice usually required.
- 4. Material Breach (Art. 60): Breach by one party entitles others to suspend or terminate. Bilateral treaty — either party may invoke. Multilateral — unanimous agreement of other parties, or injured State may suspend.
- 5. Supervening Impossibility (Art. 61): Permanent disappearance or destruction of object essential for treaty performance — e.g., island sinks below sea.
- 6. Fundamental Change of Circumstances — *Rebus Sic Stantibus* (Art. 62): Radical change in circumstances from those existing at time of conclusion — ONLY if: (a) change was not foreseen; (b) circumstances were essential basis of consent; (c) change radically transforms obligations. STRICTLY construed — very rarely accepted.
- 7. Jus Cogens (Art. 64): If new peremptory norm (jus cogens) emerges that conflicts with an existing treaty — treaty becomes void.

🟡 **Rebus Sic Stantibus (Art. 62): Fundamental change of circumstances — VERY STRICT test. Cannot be invoked simply because treaty has become burdensome or inconvenient.**

📌 *Example: USA's withdrawal from Paris Agreement (2017, rejoined 2021) — done by serving notice per treaty's withdrawal provision (Art. 28 Paris Agreement) — lawful termination/withdrawal.*

📌 *Example: UK's withdrawal from EU (Brexit 2020) — invoked Art. 50 TEU — treaty-based withdrawal mechanism.*

🏛️ **Case: Fisheries Jurisdiction Case (ICJ, 1973)** — Iceland invoked *rebus sic stantibus* to claim its 1961 fisheries agreement with UK was terminated due to changed circumstances in fisheries management. ICJ rejected — change must be radical and not foreseeable.

🏛️ **Case: Gabčíkovo-Nagymaros Project (ICJ, 1997)** — Hungary tried to invoke impossibility and *rebus sic stantibus* to terminate dam treaty with Slovakia. ICJ held neither ground was satisfied — strict conditions not met.

💡 **EXAM TIP: Grounds: 'TCDMIJ' = Treaty provision, Consent, Denunciation, Material breach, Impossibility, Jus cogens + Rebus sic stantibus. Rebus = STRICT — rarely succeeds. Always cite Gabčíkovo and Fisheries Jurisdiction.**



PART B — LONG ESSAYS (15 Marks Each)

4-5 pages per answer. Headings essential. 3+ cases. Conclude with legal basis. Time: 20-22 min.

Essay B1 — Extradition: Law, Principles & Practice ★★★★★

I. Introduction

Extradition is the mechanism by which international law bridges national borders to prevent fugitives from evading justice. At its core, it reflects the principle that no territory should become a safe haven for criminals — while simultaneously respecting State sovereignty and protecting individuals from politically motivated prosecutions. In the absence of a general obligation under international law, the extradition regime is built on bilateral and multilateral treaties, supplemented by customary principles.

■ **Fundamental rule: No general obligation to extradite without a treaty — but aut dedere aut judicare (extradite or prosecute) fills the gap.**

II. Definition and Legal Basis

- Extradition = surrender of a fugitive by the State where they are found (requested State) to the State seeking to try/punish them (requesting State).
- Source of obligation: Bilateral extradition treaties (most common); multilateral conventions (e.g., UN Convention Against Corruption 2003 — Art. 44 creates extradition obligations among parties); customary law (limited).
- India: Extradition Act 1962 + bilateral treaties with over 50 States (UK, USA, UAE, France, etc.).

III. Essential Principles

The following principles govern ALL extradition proceedings:

1. Double Criminality

- The conduct must constitute a crime in BOTH States — if legal in either, extradition fails.
- Modern approach: dual criminality assessed on conduct (facts) not label of offence.

⚖️ **Case: *R v. Bow Street Magistrate, ex parte Pinochet (No. 3) (UK, 1999)*** — House of Lords applied double criminality — torture was a crime in both Chile and UK at the relevant time — extradition permissible to Spain.

2. Principle of Specialty

- The requesting State may only prosecute for the offence(s) specified in the extradition request.
- Protects extradited person from being tried for unrelated charges.
- Requesting State cannot use extradition as a back door to get a person for a different crime.

3. Political Offence Exception

- Pure political offences (sedition, treason, rebellion against foreign government) — EXEMPT from extradition.
- The 'political' character is determined by the requested State's courts.
- EXCEPTIONS — terrorism, genocide, war crimes, crimes against humanity are NOT political offences — must extradite/prosecute.
- 'Attentat Clause' (Brussels Protocol 1965): Assassination of Head of State is NOT a political offence.

⚖️ **Case: *R v. Governor of Brixton Prison, ex parte Kolczynski (1955)*** — UK court held Polish sailors' mutiny to avoid return to Communist Poland was a political offence — extradition refused.

⚖️ **Case: *Pinochet (UK, 1999)*** — Torture and crimes against humanity NOT political offences — former Head of State has no immunity for such acts — extradition permissible.

4. Non-extradition of Own Nationals

- Many civil law States (France, Germany, India) refuse to extradite their own nationals.
- Alternative: prosecute domestically under *aut dedere aut judicare*.
- Common law States (USA, UK) generally DO extradite own nationals.

5. Rule Against Double Jeopardy (Non Bis in Idem)

- No extradition if person has already been tried and acquitted/convicted in the requested State for the same offence.

6. Death Penalty Consideration

- Several States (EU members, India in practice) refuse extradition if requesting State may impose death penalty — unless assurances given.

⚖️ **Case: *Soering v. UK (ECHR, 1989)*** — European Court of Human Rights held UK could not extradite Soering to USA (Virginia) because 'death row phenomenon' = inhuman/degrading treatment under ECHR Art. 3 — extradition would violate human rights.

IV. Procedure for Extradition

- Step 1: Requesting State submits formal extradition request through diplomatic channels.
- Step 2: Requested State's executive/judicial authority examines: treaty basis, double criminality, political offence, specialty.
- Step 3: Court in requested State conducts hearing — person may contest extradition.
- Step 4: Executive decision — even if court approves, executive may refuse (political discretion).
- Step 5: Surrender — physical transfer of person.

V. Aut Dedere Aut Judicare — Extradite or Prosecute

This principle, now firmly part of customary int'l law, provides an alternative to extradition: if a State does not extradite a person accused of serious international crimes, it **MUST** submit the case to its own prosecutorial authorities.

- Applies to: Torture (UN Convention 1984), Terrorism, Piracy, Genocide, Crimes Against Humanity.
- Prevents the requested State from becoming a sanctuary by simply refusing to extradite without consequence.

⚖️ **Case: *Questions relating to Obligation to Prosecute or Extradite (Belgium v. Senegal, ICJ, 2012)*** — ICJ held Senegal was obligated under UN Convention Against Torture to either prosecute or extradite former Chadian dictator Hissène Habré — *aut dedere aut judicare* is binding.

VI. Indian Extradition Law

- Extradition Act 1962: Governs extradition to and from India.

- Bilateral treaties: India has treaties with 50+ countries.
- India does NOT extradite own nationals (Sec. 31, Extradition Act 1962).

 *Example: Vijay Mallya (bank fraud) extradited from UK 2023. Nirav Modi (PNB fraud) extradition approved by UK court 2021 — pending appeal. Warren Anderson (Bhopal) — never extradited — no treaty + political will absent.*

VII. Conclusion

Extradition remains an imperfect but essential tool of international cooperation against crime. The balance between effective prosecution of fugitives and protection of individual rights — through the political offence exception, double criminality, specialty, and human rights conditions — reflects the tension between State interests and individual liberties. The *aut dedere aut judicare* principle increasingly fills the gap left by absent extradition treaties, ensuring that international criminals cannot simply choose their sanctuary State.

Essay B2 — Diplomatic Privileges & Immunities: VCDR 1961 ★★★★★

I. Introduction

Diplomatic relations are the lifeblood of the international system. For States to communicate, negotiate, and maintain peaceful relations, their representatives must be able to operate freely in foreign States. The Vienna Convention on Diplomatic Relations (VCDR) 1961 — ratified by 192 States — codifies the privileges and immunities necessary for diplomatic missions to function effectively.

■ VCDR Preamble: Immunities are granted not to benefit individuals but to ensure efficient performance of diplomatic functions — Functional Necessity Theory.

II. Theoretical Basis

- Exterritoriality Theory (Vattel): Embassy = extension of sending State's territory — legally rejected; too absolute.
- Representational Theory: Envoy represents the sovereign; sovereign dignity demands immunity.
- Functional Necessity Theory (Modern): Immunities necessary to enable diplomatic functions — adopted by VCDR preamble — this is the CORRECT basis.

III. Inviolability of Diplomatic Premises (Art. 22)

- Premises of the mission are inviolable — agents of the receiving State may NOT enter without consent of head of mission.
- Receiving State must take all appropriate steps to protect premises against intrusion or damage.
- Premises, furnishings, and other property are immune from search, requisition, attachment, or execution.
- Archives and documents: ALWAYS inviolable regardless of location (Art. 24).
- Diplomatic bag: Inviolable — shall not be opened or detained (Art. 27(3)).

🏛️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — Iran violated Art. 22 by permitting takeover of US Embassy and holding diplomats hostage. ICJ ordered immediate release — gross violation of VCDR.

IV. Personal Inviolability (Art. 29)

- Diplomatic agent shall NOT be liable to any form of arrest or detention.
- Receiving State must treat them with due respect and take all appropriate steps to prevent any attack on their person, freedom, or dignity.
- This is ABSOLUTE — even for serious crimes, the diplomat cannot be arrested.
- Remedy for receiving State: Declare persona non grata (Art. 9) — sending State must recall.

V. Immunity from Jurisdiction (Art. 31)

Criminal Jurisdiction: ABSOLUTE IMMUNITY — diplomatic agent cannot be prosecuted for ANY crime in receiving State's courts.

Civil and Administrative Jurisdiction: GENERAL IMMUNITY with three exceptions:

- (a) Real property actions relating to private immovable property in receiving State.
- (b) Succession proceedings where agent involved as private person (not on behalf of mission).

- (c) Professional or commercial activity outside official functions.

Art. 31: Criminal immunity = ABSOLUTE. Civil immunity = general with 3 exceptions. Administrative immunity = general. This is the most tested provision.

VI. Waiver of Immunity (Art. 32)

- Immunity belongs to the SENDING STATE — only the sending State can waive it.
- The diplomat CANNOT waive their own immunity.
- Waiver must be EXPRESS — conduct in proceedings does not constitute implied waiver for counterclaim purposes (Art. 32(3)).
- Waiver of immunity from jurisdiction does NOT imply waiver of immunity from execution of judgment (Art. 32(4)) — separate waiver required.

🔑 **Case: *Tabion v. Mufti (USA, 1996)*** — US court held diplomat's domestic employee could not sue diplomat without sending State's waiver — immunity must be expressly waived.

VII. Persona Non Grata (Art. 9)

- Receiving State may at any time declare a member of diplomatic mission persona non grata — no reasons required.
- Sending State must recall the person — failure to do so allows receiving State to refuse to recognize the person as mission member.

📌 *Example: In 2022, multiple European States expelled Russian diplomats following Ukraine invasion — declared PNG en masse. Russia retaliated in kind — standard diplomatic practice.*

VIII. Duties of Diplomatic Agent (Art. 41)

- Must respect laws and regulations of receiving State.
- Must not interfere in internal affairs.
- Must not use premises for purposes incompatible with mission functions.
- These are DUTIES — but cannot be enforced through criminal prosecution; remedy = PNG or breaking diplomatic relations.

IX. Privileges (Non-Immunity Benefits)

- Art. 34: Exempt from all dues and taxes (direct taxes only — not VAT on purchases).
- Art. 35: Exempt from personal services and military obligations.
- Art. 36: Personal baggage exempt from customs duties and inspection.
- Art. 37: Family members of diplomatic agent share immunities (if not nationals of receiving State).

X. Abuse of Diplomatic Immunity

Immunity is frequently criticised when diplomats commit serious offences. The remedy under VCDR is limited:

- Declare PNG — person leaves and sending State may prosecute at home.

- Request waiver from sending State.
- Break diplomatic relations (extreme).

 *Example: In 2001, a Russian diplomat in Ottawa killed a pedestrian while drunk driving — Russia waived immunity allowing Canadian prosecution — rare example of waiver for serious crime.*

XI. Conclusion

The VCDR 1961 has achieved near-universal acceptance because it carefully balances the functional necessity of diplomatic immunity with mechanisms to prevent abuse — the PNG declaration, waiver by sending State, and enumerated duties of diplomatic agents. The absolute criminal immunity of Art. 31 remains the most controversial provision; yet without it, diplomats could be subjected to politically motivated prosecutions undermining the entire diplomatic system. The functional necessity theory correctly explains why these immunities remain essential in the modern international order.

Essay B3 — Law of Treaties: Formation, Consent, Reservation & Termination



I. Introduction

Treaties are the primary source of rights and obligations between States in the modern international system. The Vienna Convention on the Law of Treaties (VCLT) 1969 — often called the 'treaty on treaties' — comprehensively codifies the rules governing the entire lifecycle of a treaty from formation to termination. It reflects customary international law and is widely cited even by States that have not ratified it.

■ VCLT Art. 26: *Pacta Sunt Servanda* — every treaty in force is binding and must be performed in good faith. THE foundational rule of treaty law.

II. Definition and Nature of Treaties

- Art. 2(1)(a) VCLT: Treaty = international agreement in written form, between States, governed by international law.
- Called by many names: Convention, Covenant, Protocol, Charter, Statute, Agreement, Exchange of Notes — all are treaties if they meet Art. 2 definition.
- Oral agreements: Not covered by VCLT but may be binding under general int'l law.
- Agreements with int'l organisations: Governed by VCLT 1986 (separate convention).

III. Formation and Entry into Force

Stages of treaty-making:

- Negotiation (Art. 7): By representatives with full powers — or inherent authority (Heads of State, Foreign Ministers).
- Adoption (Art. 9): Agreement on text — 2/3 majority at international conferences.
- Authentication (Art. 10): Establishes text as final and authentic — by initialling, signing, or incorporating in final act.
- Consent to be Bound (Art. 11): Critical stage — through signature, ratification, accession, acceptance, approval.
- Entry into Force (Art. 24): When treaty specifies — usually on ratification by minimum number of States.
- Registration (Art. 102 UN Charter): Mandatory for UN members — unregistered treaties cannot be invoked before UN organs.

IV. Modes of Consent to be Bound (Arts. 11-17 VCLT)

- Signature (Art. 12): Binds State if treaty so provides — used for less formal treaties or where ratification not needed.
- Ratification (Art. 14): Formal confirmation by constitutional authority — required for major treaties. Allows State to review before binding itself.
- Accession (Art. 15): Joining treaty after it has entered into force — open to non-negotiating States.
- Acceptance/Approval (Art. 14): Functionally same as ratification — different terminology.
- Exchange of Instruments (Art. 13): Bilateral treaties — binding when instruments exchanged.

V. Reservations (Arts. 19-23 VCLT)

- Reservation (Art. 2(1)(d)): Unilateral statement excluding or modifying legal effect of treaty provisions.
- When permitted: Unless treaty prohibits OR incompatible with object and purpose.
- Effect: Modifies treaty obligations between reserving State and accepting parties.
- Withdrawal: Any time (Art. 22).

■ Object-and-purpose test (Art. 19(c) + Genocide Convention Advisory Opinion 1951): Reservation must not undermine the fundamental purpose of the treaty.

⚡ Case: *Reservations to Genocide Convention (ICJ, 1951)* — Advisory Opinion established object-and-purpose test — reserving State remains party if reservation compatible with treaty's fundamental purpose, even if other States object.

VI. Invalidity of Treaties (Arts. 46-53 VCLT)

- Error (Art. 48): Factual error relating to essential basis of consent — rare.
- Fraud (Art. 49): Induced to conclude treaty by fraudulent conduct.
- Corruption (Art. 50): Representative corrupted by other State.
- Coercion of representative (Art. 51): Physical or other coercion.
- Coercion of State by threat of force (Art. 52): Treaty imposed by threat/use of force — VOID (reflects UN Charter Art. 2(4)).
- Conflict with Jus Cogens (Art. 53): Treaty conflicting with peremptory norm = VOID ab initio.

■ Art. 53: A treaty that conflicts with a jus cogens norm at time of conclusion is void in its entirety.
Art. 64: If new jus cogens emerges, existing treaty becomes void.

VII. Interpretation of Treaties (Arts. 31-33 VCLT)

- Art. 31 — General rule: Good faith + ordinary meaning of terms + context + object and purpose.
- Art. 32 — Supplementary means: Travaux préparatoires (preparatory works), circumstances of conclusion — to confirm or determine meaning when Art. 31 leaves ambiguous or absurd result.
- Art. 33 — Authentic languages: If treaty authentic in multiple languages, terms presumed same in each.

VIII. Termination of Treaties (Arts. 54-64 VCLT)

- Treaty provision (Art. 54): Expiry date, event, or denunciation clause.
- Consent of all parties (Art. 54(b)).
- Material Breach (Art. 60): Other party's serious breach — right to suspend or terminate.
- Supervening impossibility (Art. 61): Object of treaty permanently destroyed.
- Rebus Sic Stantibus (Art. 62): Fundamental change of circumstances — STRICT requirements.
- New jus cogens (Art. 64): Emerging peremptory norm voids conflicting treaty.

⚡ Case: *Gabcikovo-Nagymaros (ICJ, 1997)* — Hungary could not terminate dam treaty by invoking rebus sic stantibus or impossibility — conditions for Art. 61/62 not met. Treaty obligations subsisted.

IX. Conclusion

The VCLT 1969 provides the most comprehensive codification of treaty law. Its foundational principle — *pacta sunt servanda* — ensures that the international legal system functions through predictable, binding commitments. From the detailed rules on formation and consent, through the nuanced reservation regime, to the carefully circumscribed grounds for termination, the VCLT represents the maturity of international law in governing the most important instrument of State relations. India, though not having ratified the VCLT, applies its provisions as reflecting customary international law.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label each section: ISSUE / RULE / APPLICATION / CONCLUSION. Clear headings. Time: 15 min each.

IRAC 1 — Diplomat Arrested for Cyber Espionage (2024 Paper Q16)



Scenario (2024 Q16): A diplomat belonging to State R was arrested in State S under the accusation of participating in cyber espionage. Subsequently, State R has made an official request for the return of its diplomat. Examine.

I — Issue

(1) Whether the arrest of a diplomatic agent by the receiving State is permissible under international law. (2) What are the rights of the sending State (State R) and the obligations of the receiving State (State S) regarding the arrested diplomat. (3) What is the appropriate course of action.

R — Rule

- Vienna Convention on Diplomatic Relations (VCDR) 1961 — governs the entire situation.
- Art. 29 VCDR: A diplomatic agent shall NOT be liable to any form of arrest or detention. The receiving State shall treat him with due respect and take all appropriate steps to prevent any attack on his person, freedom, or dignity.
- Art. 31(1) VCDR: A diplomatic agent enjoys immunity from the criminal jurisdiction of the receiving State — ABSOLUTE immunity. No exceptions for gravity of offence.
- Art. 9 VCDR: Receiving State may at any time declare the diplomat persona non grata — no reasons need be given. Sending State must recall.
- Art. 32 VCDR: Only the SENDING STATE can waive immunity — the diplomat cannot waive their own immunity.
- Art. 41 VCDR: Diplomatic agents must respect the laws of the receiving State — but cannot be compelled through arrest/detention.
- Functional Necessity Theory: Immunities exist to protect diplomatic functions — not the individual.

🏴 Case: *Tehran Hostages Case (ICJ, 1980)* — ICJ held: detention of diplomats violates Art. 29 VCDR — immediate release required regardless of alleged misconduct.

🏴 Case: *Congo v. Belgium (ICJ, 2002)* — ICJ held: even for serious international crimes, serving diplomatic/government officials enjoy immunity — criminal immunity is absolute.

A — Application

Step 1 — Legality of arrest: The arrest of State R's diplomat by State S is a CLEAR VIOLATION of Art. 29 VCDR. Criminal immunity under Art. 31 is ABSOLUTE — it applies even to serious offences like cyber espionage. There are no exceptions based on gravity of the alleged crime.

Step 2 — State R's rights: State R has the right to: (a) formally protest the arrest as a violation of VCDR; (b) demand immediate release and return of its diplomat; (c) raise the matter before the ICJ if State S refuses to comply.

Step 3 — State S's options: State S CANNOT prosecute the diplomat. Its legal options are: (a) Release the diplomat immediately (mandatory); (b) Declare the diplomat persona non grata (Art. 9) — no reasons required; (c) Request State R to waive immunity (Art. 32) — State R may decline; (d) If evidence is strong, negotiate with State R for waiver or domestic prosecution.

Step 4 — Cyber espionage context: While cyber espionage may violate international norms and is

politically serious, it does not alter the ABSOLUTE nature of diplomatic criminal immunity under Art. 31 VCDR. The remedy for espionage by diplomats is PNG, not prosecution.

C — Conclusion

■ **CONCLUSION:** The arrest of State R's diplomat by State S is UNLAWFUL under VCDR Art. 29 and Art. 31. State S must immediately release and allow the diplomat to return to State R. State R's request for return is legally valid and must be honoured. State S's proper remedy is to: (1) Release immediately; (2) Declare PNG under Art. 9; (3) Request waiver from State R under Art. 32. If State S refuses to release, State R may bring proceedings before the ICJ. The diplomat's alleged cyber espionage does NOT suspend or override diplomatic immunity.

IRAC 2 — Extradition Without Treaty (2024 Paper Q13 type) ★★★★★

Scenario (2024 Q13): If State Y asks State X to extradite a criminal, but they don't have an extradition treaty. Is State X obligated under international law to extradite? Explain with reasons.

I — Issue

Whether a State (X) is obligated under international law to extradite a person to another State (Y) in the absence of an extradition treaty between them, and what alternatives exist.

R — Rule

- General rule: There is NO general obligation under customary international law to extradite — extradition requires a treaty basis.
- 'Aut dedere aut judicare' (extradite or prosecute): For serious international crimes (terrorism, torture, genocide, war crimes), this customary principle applies — if you don't extradite, you MUST prosecute.
- *Belgium v. Senegal* (ICJ, 2012): ICJ confirmed aut dedere aut judicare applies as treaty obligation under UN Convention Against Torture — and is reflective of custom for serious crimes.
- UN Convention Against Corruption (Art. 44): Treats extradition treaties as the legal basis — but where no treaty, the convention can serve as basis for States that so choose.
- Double Criminality: Even if extradited — conduct must be crime in both States.
- Political Offence Exception: Cannot extradite for political offences.
- India's position: Extradition Act 1962, Sec. 2 — extradition only to treaty countries OR designated countries by notification.

🏴‍☠️ **Case:** *Belgium v. Senegal* (ICJ, 2012) — Senegal obliged to extradite or prosecute former Chadian dictator Habré — aut dedere aut judicare applies under UN Convention Against Torture. Failure to do so = breach of int'l obligation.

🏴‍☠️ **Case:** *US v. Alvarez-Machain* (US Supreme Court, 1992) — US abducted a Mexican national for trial in USA — Supreme Court upheld jurisdiction despite no extradition. Controversial — shows limits of int'l law in practice.

A — Application

Step 1 — No treaty: State X has no extradition treaty with State Y. Under general int'l law, State X has NO obligation to extradite. The request is legally voluntary.

Step 2 — Nature of offence: CRITICAL. If the offence is an ORDINARY CRIME (murder, fraud) — no treaty, no obligation — State X may refuse. If the offence is an INTERNATIONAL CRIME (torture, terrorism, genocide, war crimes) — aut dedere aut judicare applies — State X must either extradite OR prosecute domestically.

Step 3 — Political offence: If the offence is political in nature — State X is justified in refusing extradition even under a treaty. No obligation at all without a treaty.

Step 4 — Comity: State X may extradite as a matter of comity (international courtesy) even without treaty — but this is discretionary, not obligatory.

C — Conclusion

🟡 **CONCLUSION:** State X is NOT generally obligated to extradite without a treaty. HOWEVER: (1) If

the crime is an international crime covered by a multilateral convention (terrorism, torture, genocide), State X is obligated to EITHER extradite OR prosecute under the aut dedere aut judicare principle; (2) For ordinary crimes — refusal is legally permissible; (3) State X may extradite as a matter of comity. Recommendation: State Y should negotiate a bilateral extradition treaty with State X, or invoke applicable multilateral conventions if the crime falls within their scope.

QUICK REVISION SHEET — UNIT III

Critical Articles — Must Memorise

VCDR 1961:

- Art. 9 — Persona Non Grata
- Art. 22 — Inviolability of premises
- Art. 24 — Inviolability of archives
- Art. 27 — Freedom of communication + diplomatic bag
- Art. 29 — Personal inviolability (NO arrest/detention)
- Art. 31 — Absolute criminal immunity; civil immunity with 3 exceptions
- Art. 32 — Waiver by sending State only
- Art. 34 — Tax exemption
- Art. 41 — Duty to respect receiving State's laws

VCLT 1969:

- Art. 2(1)(a) — Definition of treaty
- Art. 7 — Full powers
- Art. 11 — Modes of consent
- Art. 19(c) — Reservation: object-and-purpose test
- Art. 26 — Pacta sunt servanda
- Art. 27 — Cannot invoke internal law vs treaty
- Art. 31 — Interpretation: good faith + ordinary meaning + context + object/purpose
- Art. 52 — Coercion by force → treaty void
- Art. 53 — Jus cogens → treaty void
- Art. 60 — Material breach → termination
- Art. 62 — Rebus sic stantibus (strict)

Refugee Convention 1951:

- Art. 1A — Definition of refugee
- Art. 33 — Non-refoulement (core principle)

Top Cases — One Liner Each

- Nottebohm (ICJ, 1955): Genuine link test — nationality must reflect real connection.
- Asylum Case (ICJ, 1950): Diplomatic asylum NOT recognised in general int'l law.
- Tehran Hostages (ICJ, 1980): Detaining diplomats = gross violation of VCDR Arts. 22 & 29.
- Congo v. Belgium (ICJ, 2002): Absolute immunity for serving diplomatic/govt officials even for int'l crimes.
- Pinochet (UK, 1999): Former Head of State no immunity for crimes against humanity; NOT political offence.
- Soering v. UK (ECHR, 1989): Cannot extradite if death row phenomenon = ECHR Art. 3 violation.
- Belgium v. Senegal (ICJ, 2012): Aut dedere aut judicare binding under UN Convention Against Torture.
- Reservations to Genocide Convention (ICJ, 1951): Object-and-purpose test for reservations.
- Gabčíkovo-Nagymaros (ICJ, 1997): Rebus sic stantibus conditions very strict — not met.
- Fisheries Jurisdiction (ICJ, 1973): Rebus sic stantibus rejected — Iceland's fisheries change not

radical enough.

- Nuremberg Trials (1945-46): Individuals bear int'l criminal responsibility; superior orders no defence.

Memory Mnemonics

NATIONALITY ACQUISITION: 'JJNAM' = Jus Soli, Jus Sanguinis, Naturalisation, Annexation, Marriage

EXTRADITION PRINCIPLES: 'DTSP-NE' = Double criminality, Treaty basis, Specialty, Political offence exception, Non-extradition of nationals, Extradite-or-prosecute

VCDR KEY ARTICLES: '22-29-31-32-9' = Premises, Personal, Criminal immunity, Waiver, PNG

TREATY STAGES: 'NAAEFR' = Negotiate, Adopt, Authenticate, Express consent, Entry into force, Register

TERMINATION GROUNDS: 'TCDMIJ' = Treaty provision, Consent, Denunciation, Material breach, Impossibility, Jus cogens/Rebus

ASYLUM TYPES: 'TDN' = Territorial (everywhere), Diplomatic (Latin America only), Neutral zone

TRAP QUESTIONS — Common Exam Mistakes

- TRAP 1: 'Can a diplomat waive their own immunity?' — NO. Only SENDING STATE can waive (VCDR Art. 32). Diplomat has no personal right to immunity — it belongs to the State.
- TRAP 2: 'Is criminal immunity of diplomat absolute?' — YES, Art. 31 VCDR. No exceptions — not even for murder, espionage, or terrorism. Remedy = PNG or waiver request.
- TRAP 3: 'Is diplomatic asylum recognised in general int'l law?' — NO. Only in Latin America. Asylum Case (ICJ 1950) settled this.
- TRAP 4: 'Is there a general obligation to extradite without a treaty?' — NO. But for int'l crimes — aut dedere aut judicare applies.
- TRAP 5: 'Does ratification = signature?' — NO. Signature = authentication; Ratification = formal consent by constitutional authority. Must be distinguished.
- TRAP 6: 'Can rebus sic stantibus be invoked whenever treaty becomes burdensome?' — NO. Art. 62 VCLT is VERY STRICT — change must be radical, unforeseen, and not caused by the invoking State.
- TRAP 7: 'Is non-refoulement only in Refugee Convention?' — NO. It is widely considered customary int'l law — applies even to States not party to Refugee Convention 1951.

Last-Minute Checklist

-  Diplomatic immunity question: ALWAYS cite VCDR 1961 + specific article + Tehran Hostages + functional necessity theory
-  Extradition: Name all 6 principles; state aut dedere aut judicare; cite Pinochet + Belgium v. Senegal
-  Asylum: Distinguish territorial vs diplomatic; cite Asylum Case ICJ 1950; cite Art. 33 Refugee Convention 1951
-  Treaties: Always cite VCLT 1969 Art. 26 (Pacta Sunt Servanda) + Art. 31 (interpretation) + Art. 62 (rebus)

-  Nationality: Genuine link test = Nottebohm; statelessness = Hague Convention 1930
-  IRAC: Always label ISSUE / RULE / APPLICATION / CONCLUSION clearly — 2-3 marks per section

 2024 PAPER DIRECT HITS:

Q13 (Part B): Extradition without treaty — answered fully in IRAC 2

Q16 (Part C): Diplomat arrested for cyber espionage — answered fully in IRAC 1

Both these IRACes are based on REAL 2024 exam questions — master these first!

— End of Unit III: Individual, Nationality, Extradition, Asylum, Diplomatic Immunity & Treaties —

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